

Refund Policy and Procedure

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1. Purpose

This Policy and Procedure establishes TIIS's framework for assessing, approving, paying, recording and reviewing refunds of tuition and non-tuition fees. It is designed to ensure that refund decisions are fair, transparent, consistent with the student's written agreement, and compliant with the Education Services for Overseas Students Act 2000 (ESOS Act), the National Code and other applicable law.
For overseas students, mandatory requirements under the ESOS framework prevail over any inconsistent term of this Policy, a written agreement or an internal administrative practice.

2. Scope

This Policy applies to all TIIS students and intending students who have paid tuition or non-tuition fees. Sections dealing with the ESOS Act, CRICOS, PRISMS and the Tuition Protection Service (TPS) apply specifically to overseas students and intending overseas students.

3. Legislative and Regulatory Framework

- Education Services for Overseas Students Act 2000, including Part 5 tuition protection and student/provider default requirements.
- National Code of Practice for Providers of Education and Training to Overseas Students 2018, particularly Standard 3 (written agreements and refunds) and Standard 10 (complaints and appeals).
- Education Services for Overseas Students (Calculation of Refund) Specification 2014, as amended or replaced.
- Higher Education Standards Framework (Threshold Standards) 2021.
- Australian Consumer Law and applicable privacy, records and financial-control requirements.
- Tuition Protection Service requirements and applicable Department of Education guidance.

4. Policy Principles

- Refund terms must be clearly disclosed in the student's written agreement and applied consistently.
- TIIS must not contract out of a mandatory statutory refund entitlement or calculation.
- Refund decisions must be evidence-based, documented and made within applicable statutory or contractual timeframes.
- Where a student default is governed by a compliant written agreement, the refund is determined under that agreement, subject to the ESOS Act and other applicable law.
- Visa-refusal and provider-default cases must be assessed under the applicable statutory framework, not solely under TIIS's internal percentage rules.
- A student's use of TIIS's complaints and appeals process does not remove rights available under the Australian Consumer Law or other applicable law.

5. Written Agreement Requirements

For overseas students, TIIS must enter into a written agreement concurrently with or before accepting tuition or non-tuition fees. The agreement must comply with the ESOS Act and National Code and, in relation to refunds, clearly state:

- amounts that may or may not be refunded, including fees collected by an education agent

on TIIS's behalf;

- the process for claiming a refund;
- any specified person, other than the student, who may receive a refund;
- what occurs if TIIS does not deliver the course, including the role of the TPS; and
- the student's rights to use complaints and appeals processes and, where applicable, take action under the Australian Consumer Law.

6. Refund Framework

Refunds must be determined under this Policy, the student's written agreement and applicable law. The table below is TIIS's internal framework only. Where legislation or a mandatory statutory calculation applies, that requirement prevails.

Refund scenario	TIIS refund framework
Enrolment / administration fee	Non-refundable, unless otherwise required by law or the written agreement.
Student visa refused before course commencement	Apply the mandatory ESOS visa-refusal refund calculation (including permitted deductions and, where applicable, tuition already provided) under the ESOS Act and current Calculation of Refund Specification. Use the matching statutory calculation clause in the student written agreement; record the formula and workings for each case.
Student visa refused after course commencement	Apply the mandatory ESOS visa-refusal refund calculation (including permitted deductions and, where applicable, tuition already provided) under the ESOS Act and current Calculation of Refund Specification. Use the matching statutory calculation clause in the student written agreement; record the formula and workings for each case.
Withdrawal more than 4 weeks before course commencement	Refund 30% of tuition fees already paid for the relevant course (excluding separately identified non-tuition fees), subject to the written agreement, applicable law and assessment of fairness. The previous retention of 70% requires documented legal and commercial justification. No percentage is effective until the Board approves an identical, defensible schedule in the Letter of Offer.
Withdrawal less than 4 weeks before, or after, course commencement	No automatic refund under the existing internal schedule, but each request must be assessed against the written agreement, applicable law, consumer-law fairness and exceptional circumstances. This provision must not be applied as an absolute exclusion of refunds.
Visa cancellation arising from the student's actions	No refund under the TIIS internal framework, unless otherwise required by the written agreement or applicable law.
Enrolment cancellation arising from the student's actions	No refund under the TIIS internal framework, unless otherwise required by the written agreement or applicable law.
OSHC	Any refund is determined by the relevant OSHC provider and applicable arrangements.
TIIS fails to start or ceases to provide the course	Provider-default obligations apply. TIIS must discharge its ESOS obligations within the statutory timeframe by arranging an accepted alternative course or refunding unspent tuition fees, as applicable.

Finance must document the basis and calculation of each refund, including any statutory calculation,

deductions, approval and payment evidence.

7. Student Default

For an overseas student, student default has the meaning given by the ESOS Act. It includes circumstances where the student does not start on the agreed starting day, withdraws before or after commencement, or TIIS refuses to provide or continue the course for a permitted reason such as non-payment, visa-condition breach or student misbehavior.
Where TIIS has a compliant written agreement, any refund following student default is determined in accordance with that agreement and section 47D of the ESOS Act. Where the statutory refund provisions apply instead, including relevant visa-refusal cases or where the written agreement does not meet section 47B requirements, TIIS must apply the statutory calculation and timeframe.

8. Student Visa Refusal

A visa refusal must not be processed simply as an ordinary withdrawal. Finance must obtain reliable evidence of the visa refusal and determine whether the refund is governed by the statutory visa-refusal provisions of the ESOS Act and the applicable refund calculation instrument. The refund calculation must follow the applicable statutory formula under the ESOS Act and the Education Services for Overseas Students (Calculation of Refund) Specification in force at the relevant time, as reflected in the student written agreement. Finance must document the amount paid, any permitted deductions, tuition provided where relevant and the statutory basis for the final amount. The Letter of Offer must cross-reference this statutory calculation; an internal withdrawal percentage must not substitute for it.
Where the statutory calculation applies, TIIS must calculate and pay the refund within the applicable ESOS timeframe. Deductions may only be made where permitted by the statutory framework and the student's written agreement.

9. Provider Default and Tuition Protection

TIIS defaults for ESOS purposes if it fails to start providing a course on the agreed starting day, or ceases providing the course after commencement but before completion, in circumstances covered by the ESOS Act.
Following provider default, TIIS must comply with all statutory notification and discharge obligations. This includes notifying the relevant ESOS agency, TPS Director and affected students as required, and within the provider obligation period either: TIIS must notify the TPS Director, the ESOS agency and affected students within three business days of the default, using PRISMS where required and other prescribed notification channels. The Registrar must retain evidence of notification and submission dates.

- arranging for the student to be offered a place in an alternative course that the student accepts in writing; or
- paying the student the required refund of unspent tuition fees.

The current ESOS provider obligation period is 14 days after the default day. TIIS must also complete the required outcome reporting. If TIIS cannot discharge its obligations, the TPS may assist affected students in accordance with the ESOS framework.

10. Compassionate or Compelling / Exceptional Circumstances

TIIS may approve a refund greater than the ordinary internal entitlement where exceptional, compassionate or compelling circumstances justify a different outcome, provided the decision is lawful, fair, documented and within the relevant delegation.

Relevant circumstances may include:

- serious illness or injury supported by appropriate evidence;
- bereavement of a close family member;
- a serious traumatic event;
- major political upheaval or natural disaster materially affecting the student's ability to study;
- significant visa processing delay outside the student's control; or
- another circumstance beyond the student's reasonable control that materially affects commencement or continuation of study.

The examples are not exhaustive and do not create an automatic entitlement. Each case must be assessed on its evidence and applicable law.

11. Refund Request and Decision Process

Step	Requirement
1. Request	Student submits the prescribed Refund Request Form and supporting evidence to TIIS.
2. Verification	Student Services confirms enrolment, commencement, withdrawal/deferment status and relevant student records. Finance confirms invoices and payments.
3. Assessment	Finance assesses the request against this Policy, the written agreement and applicable law, and prepares the refund calculation.
4. Approval	Routine refunds are approved under TIIS delegations. Non-standard, discretionary or exceptional cases are referred to an authorised senior officer.
5. Payment	Approved refunds are paid to the student or other person specified in the written agreement, subject to identity and banking verification.
6. Reporting	Where required, the Registrar / authorised PRISMS officer completes PRISMS and/or TPS reporting within the statutory timeframe.
7. Record	Finance records the decision, calculation, approval and payment in the Refund Register and retains supporting evidence.

TIIS aims to complete the initial internal assessment within five business days after the request reaches Finance. This internal target does not replace a shorter or mandatory statutory requirement.

12. Refund Timeframes

Circumstance	Maximum / applicable timeframe
Student default - refund under compliant written agreement (ESOS Act s 47D)	Within 4 weeks after TIIS receives the student's written claim.
Student default - statutory refund under ESOS Act s 47E	Within 4 weeks after the default day.
Provider default	Notify the TPS Director, ESOS agency and affected students within three business days using required channels (including PRISMS as applicable); discharge provider-default obligations within 14 days after the default day, and complete statutory outcome reporting.
Other refunds	Within the timeframe stated in the written agreement or applicable law; TIIS should process approved refunds promptly.

13. Payment of Refunds

Refunds must be paid to the student unless the written agreement specifies another person who may receive the refund. TIIS must verify the payee and nominated bank details before payment. Refunds must not be redirected to an education agent or another third party merely because that party originally facilitated or transmitted the payment, unless the written agreement and applicable law permit payment to that specified person.

Where applicable pre-paid tuition fees are held in the designated account, the refund or release of those funds must also comply with TIIS's Protected Amount / Designated Account Procedure, approved financial delegations and applicable ESOS requirements.

14. Refund Register and Records

Finance must maintain a complete Refund Register recording, as applicable: Unclaimed or unpaid refunds and unidentified or unallocated receipts must be investigated, reconciled, escalated and dealt with under section 9 of the Finance Management Policy and Procedure, including applicable unclaimed-money requirements. Refund liabilities must remain recorded until lawfully discharged.

- student name/ID, course and CoE;
- request date, reason and relevant student status;
- decision and basis;
- refund calculation and amount retained/refunded;
- approval details and approving officer;
- payment date and payment reference; and
- applicable PRISMS/TPS action and completion date.

Records must provide a clear audit trail from request and assessment through approval, payment/accounting and regulatory reporting. Written agreements and student payment receipts must be retained for at least the minimum period required by the National Code and any longer period required by TIIS records-management requirements or other law.

15. Complaints and Appeals

A student who is dissatisfied with a refund decision may use the TIIS Student Complaints and Appeals Policy and Procedure. TIIS must provide written reasons for its decision and information about available review pathways.

For higher education students, an unresolved external complaint may be taken to the National Student Ombudsman where the matter is within its jurisdiction. Nothing in this Policy removes any right a student may have under the Australian Consumer Law or other applicable law.

16. Responsibilities

Responsible officer / body	Responsibility
Board of Directors	Governance oversight of financial sustainability, ESOS compliance and material refund/TPS risks.
CEO	Executive accountability for implementation, adequate controls, delegations and remediation of material issues.
Registrar / Student Services	Maintains student status evidence, communicates outcomes and completes applicable PRISMS/student reporting.
Finance Manager /	Verifies payments, prepares refund calculations, processes

Accountant	approved refunds, maintains the Refund Register and financial evidence.
Authorised Senior Officer	Reviews and approves non-standard, discretionary or exceptional refund matters under TIIS delegations.
Compliance Manager	Periodically monitors compliance, samples refund decisions and verifies corrective action.
Audit and Risk Committee	Provides oversight and assurance where material financial-control, ESOS or refund issues are escalated.

17. Compliance Monitoring

The Compliance Manager must periodically review implementation of this Policy on a risk basis, including the consistency of refund decisions with written agreements, statutory calculations, payment timeframes, PRISMS/TPS reporting and supporting records.
Any material breach, systemic delay, incorrect statutory calculation or failure to meet provider/student default obligations must be reported to the CEO and remediated promptly. Material matters must be escalated through TIIS's governance and assurance framework.

18. Related TIIS Documents

- Student Written Agreement / Letter of Offer
- Refund Request Form
- Student Complaints and Appeals Policy and Procedure
- Deferral, Suspension and Cancellation Policy and Procedure
- International Student Admission Policy and Procedure
- Protected Amount / designated account Procedure
- Delegations of Authority / Financial Delegations
- Records Management and Privacy policies

19. References

- Education Services for Overseas Students Act 2000 (Cth), Part 5, including ss 46A-46F and 47A-47H.
- National Code of Practice for Providers of Education and Training to Overseas Students 2018, current compilation, particularly Standard 3 and Standard 10.
- Education Services for Overseas Students (Calculation of Refund) Specification 2014, as amended or replaced.
- Australian Government Department of Education, Tuition Protection Service - International Providers guidance.
- Commonwealth Ombudsman / National Student Ombudsman guidance on international student complaints, fees and refunds.

20. Version History

Version	Status	Approval	Dates
1.0	Document creation	Approved	Document creation
1.1	Minor changes	Approved	29 June 2015
1.2	Minor changes	Approved	17 January 2021
1.3	Minor changes	Approved	17 October 2021

2.0	Comprehensive redevelopment for current ESOS/TPS/National Code requirements and governance controls	No	18 January 2022
2.1	Comprehensive redevelopment	Approved	22 October 2026

Regulatory priority: If this Policy is inconsistent with a mandatory requirement of the ESOS Act, National Code, applicable refund calculation instrument or other law, the mandatory requirement prevails and TIIS must apply the law in force at the relevant time.

**********END OF POLICY and PROCEDURE*********